

Court No. - 36

Case :- WRIT - C No. - 19159 of 2011

Petitioner :- Abdul Gaffar @ G. Hussian

Respondent :- State Of U.P. And Others

Petitioner Counsel :- S.K. Tiwari, Ajai Kumar

Respondent Counsel :- C.S.C., P.K. Shukla

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Rajesh Chandra, J.

On prayer made by Sri Pankaj Kumar Shukla, learned counsel for the respondent nos. 4 and 5, the case is directed to be put up as fresh on 20.04.2011 so as to enable him to obtain instructions particularly in regard to the following:-

- (1) Whether any Provisional Assessment was made in respect of the petitioner ?
- (2) Whether copy of the Provisional Assessment was sent to the petitioner, and if so, the mode of such Communication ?
- (3) Whether the petitioner submitted any Objections against the Provisional Assessment ?
- (4) Whether the Objections, if any, submitted by the petitioner were decided by the concerned authority, and if so, copy of such Order ?
- (5) Whether the Order, if any, passed on the Objections of the petitioner against the Provisional Assessment was sent to the petitioner, and if so, mode of such Communication ?
- (6) Whether any Final Assessment Order was issued in respect of the petitioner, and if so, copy of such Order?
- (7) Whether Final Assessment Order was communicated to the petitioner, and if so, the mode of such Communication ?

Order Date :- 4.4.2011

Sunil Kr Tiwari

Court No. - 36

Case :- WRIT - C No. - 19159 of 2011

Petitioner :- Abdul Gaffar @ G. Hussian

Respondent :- State Of U.P. And Others

Petitioner Counsel :- S.K. Tiwari,Ajai Kumar

Respondent Counsel :- C.S.C.,P.K. Shukla

Hon'ble Satya Poot Mehrotra,J.

Hon'ble S.C. Agarwal,J.

Sri Pankaj Kumar Shukla, learned counsel for the respondent nos.4 and 5 states that counter affidavit on behalf of the said respondents will be filed by 25.4.2011.

On his prayer, the case is directed to be put up as fresh on 26.4.2011.

Order Date :- 22.4.2011

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Court No. - 36

Case :- WRIT - C No. - 19159 of 2011

Petitioner :- Abdul Gaffar @ G. Hussian

Respondent :- State Of U.P. And Others

Petitioner Counsel :- S.K. Tiwari, Ajai Kumar

Respondent Counsel :- C.S.C., P.K. Shukla

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Rajesh Chandra, J.

It is submitted by Sri S.K.Tiwari, learned counsel for the petitioner that without complying with the Mandatory Requirements of the U.P. Electricity Supply Code, 2005, the Recovery Certificate dated 23.6.2010 (Annexure No. 5 to the Writ Petition) has been sent by the respondent no. 5 to the Collector, Moradabad (respondent no.2) for recovery of the Electricity dues in respect of the assessment made in respect of the petitioner on the basis of the alleged theft of Electricity.

By the order dated 4.4.2011, Sri Pankaj Kumar Shukla, learned counsel for the respondent nos. 4 and 5 was granted time to obtain instructions in regard to various points , as mentioned in the said order dated 4.4.2011.

Sri Pankaj Kumar Shukla, learned counsel for the respondent nos. 4 and 5 states that he has received instructions in the matter.

Sri Pankaj Kumar Shukla, learned counsel for the respondent nos. 4 and 5, on the basis of the instructions received by him, states that the Checking in the premises of the petitioner was done on 24.10.2009. Provisional Assessment dated 29.10.2009 was made in respect of the petitioner, and the same was sent to the petitioner by Registered Post on the same date.

Sri Pankaj Kumar Shukla, learned counsel for the respondent nos. 4 and 5 further states that as no Objections were received from the petitioner, a Demand Notice dated 3.2.2010 was issued to the petitioner. On query made by the Court, Sri Pankaj Kumar Shukla, learned counsel for the respondent nos. 4 and 5 states that no Final Assessment Order was passed in the present case because no Objections were submitted by the petitioner against the Provisional Assessment and as such, the Provisional Assessment itself was treated to be Final Assessment but no specific order in this regard was passed.

Sub-section (3) of Section 126 of the Electricity Act, 2003 contemplates passing of a Final Order of Assessment, after Provisional Assessment is made in respect of the electricity charges.

Section 127 of the Electricity Act, 2003 provides for Appeal against the Final Order made under Section 126 of the said Act.

Sri S.K.Tiwari, learned counsel for the petitioner submits that as no Final Assessment Order in respect of the petitioner was passed, the petitioner was deprived of his right of filing Appeal under Section 127 of the Electricity Act, 2003.

The matter requires consideration.

Issue notice pending admission.

Notice on behalf of the respondent nos.1,2 and 3 has been accepted by the learned Standing Counsel.

Notice on behalf of the respondent nos . 4 and 5 has been accepted by Sri Pankaj Kumar Shukla, learned counsel for the said respondents .

Counter Affidavits on behalf of the respondents may be filed within six weeks.

Rejoinder Affidavit may be filed by the next date fixed in the matter.

List this case on 14.7.2011 before the appropriate Bench.

Heard on the question of grant of interim relief.

Having regard to the facts and circumstances of the case and having considered the submissions made by the learned counsel for the parties, it is provided that till the next date fixed in the matter, recovery proceedings against the petitioner pursuant to the Recovery Certificate dated 23.6.2010 (Annexure No. 5 to the Writ Petition) will remain stayed provided within four weeks from today, the petitioner deposits an amount of Rs. 15,000/- with the respondent no.5.

The amount so deposited by the petitioner will be without prejudice to the rights and contentions of the parties involved in the present Writ Petition.

In the event of default on the part of the petitioner in making the deposit, as directed above, this interim order will stand automatically vacated.

Order Date :- 26.4.2011

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Court No. - 37

Case :- WRIT - C No. - 19159 of 2011

Petitioner :- Abdul Gaffar @ G. Hussian

Respondent :- State Of U.P. And Others

Petitioner Counsel :- S.K. Tiwari,Ajai Kumar

Respondent Counsel :- C.S.C.,P.K. Shukla

Hon'ble R.K. Agrawal,J.

Hon'ble Sunil Hali,J.

Passed over on the illness slip of Sri S.K. Tiwari.

Order Date :- 4.8.2011

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Court No. - 37

Case :- WRIT - C No. - 19159 of 2011

Petitioner :- Abdul Gaffar @ G. Hussian

Respondent :- State Of U.P. And Others

Petitioner Counsel :- S.K. Tiwari,Ajai Kumar

Respondent Counsel :- C.S.C.,P.K. Shukla

Hon'ble R.K. Agrawal,J.

Hon'ble Sunil Hali,J.

As prayed, counter affidavit be filed within three weeks and no more.
List thereafter.

Order Date :- 11.8.2011

AM/-

Court No. - 37

Case :- WRIT - C No. - 19159 of 2011

Petitioner :- Abdul Gaffar @ G. Hussian

Respondent :- State Of U.P. And Others

Petitioner Counsel :- S.K. Tiwari,Ajai Kumar

Respondent Counsel :- C.S.C.,P.K. Shukla

Hon'ble R.K. Agrawal,J.

Hon'ble Vinod Prasad,J.

Passed over on the illness slip of Sri S.K. Tiwari, learned counsel for the petitioner.

Order Date :- 2.9.2011

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Court No. - 37

Case :- WRIT - C No. - 19159 of 2011

Petitioner :- Abdul Gaffar @ G. Hussian

Respondent :- State Of U.P. And Others

Petitioner Counsel :- S.K. Tiwari, Ajai Kumar

Respondent Counsel :- C.S.C., P.K. Shukla

Hon'ble R.K. Agrawal, J.

Hon'ble Surendra Kumar, J.

Passed over on the illness slip of Sri Ajay Kumar, learned counsel for the petitioner.

Order Date :- 8.9.2011

Rmk.

Court No. - 37

Case :- WRIT - C No. - 19159 of 2011

Petitioner :- Abdul Gaffar @ G. Hussian

Respondent :- State Of U.P. And Others

Petitioner Counsel :- S.K. Tiwari,Ajai Kumar

Respondent Counsel :- C.S.C.,P.K. Shukla

Hon'ble R.K. Agrawal,J.

Hon'ble Surendra Kumar,J.

Passed over on the illness slip of Sri S.K. Tiwari.

Order Date :- 15.9.2011

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Court No. - 37

Case :- WRIT - C No. - 19159 of 2011

Petitioner :- Abdul Gaffar @ G. Hussian

Respondent :- State Of U.P. And Others

Petitioner Counsel :- S.K. Tiwari,Ajai Kumar

Respondent Counsel :- C.S.C.,P.K. Shukla

Hon'ble R.K. Agrawal,J.

Hon'ble Surendra Kumar,J.

Passed over on the request of Sri Ajai Kumar.

Order Date :- 22.9.2011

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Court No. - 38

Case :- WRIT - C No. - 19159 of 2011

Petitioner :- Abdul Gaffar @ G. Hussian

Respondent :- State Of U.P. And Others

Counsel for Petitioner :- S.K. Tiwari, Ajai Kumar

Counsel for Respondent :- C.S.C., P.K. Shukla

Hon'ble Ran Vijai Singh, J.

Hon'ble Ravindra Nath Kakkar, J.

Case called out.

None is present to press this petition on behalf of petitioner.

The case is passed over for the day.

List peremptorily in the next cause list.

Order Date :- 25.01.2017.

Vinod.

Court No. - 38

Case :- WRIT - C No. - 19159 of 2011

Petitioner :- Abdul Gaffar @ G. Hussian

Respondent :- State Of U.P. And Others

Counsel for Petitioner :- S.K. Tiwari, Ajai Kumar

Counsel for Respondent :- C.S.C., P.K. Shukla

Hon'ble Ran Vijai Singh, J.

Hon'ble Vinod Kumar Srivastava-III, J.

Sri Ajay Kumar, learned counsel appearing for the petitioner submits that by efflux of time this writ petition has become infructuous and it may be dismissed as having become infructuous.

The writ petition is dismissed as infructuous.

Interim order, if any, stands vacated.

Sri Nipendra Mishra, learned Standing Counsel appears for the respondent.

Order Date :- 2.2.2017

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